

Buildings Energy Efficiency Ordinance

(Cap. 610)

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An Ordinance to require compliance with codes of practice concerning the energy efficiency of air-conditioning installations, electrical installations, lift and escalator installations and lighting installations and energy audits in respect of several types of buildings and to provide for related matters.

[21 February 2011]

(Enacting provision omitted—E.R. 1 of 2013)

Part 1

Preliminary

(Format changes—E.R. 1 of 2013)

1. Short title

(Amended E.R. 1 of 2013)

- (1) This Ordinance may be cited as the Buildings Energy Efficiency Ordinance.
- (2) *(Omitted as spent—E.R. 1 of 2013)*

2. Interpretation

- (1) In this Ordinance— *(Amended 24 of 2025 s. 3)*

air-conditioning installation (空調裝置), in relation to a building, means fixed equipment, distribution network or control devices that cool down, heat up, humidify, dehumidify, purify or distribute air within the building;

appeal board (上訴委員會) means a Buildings Energy Efficiency Appeal Board appointed under section 35;

appeal board panel (上訴委員團) means the Buildings Energy Efficiency Appeal Board Panel referred to in section 34;

approved loading (允許負載量) means the maximum current demand approved by an electricity supplier in respect of an electrical installation;

authorized officer (獲授權人員) means a person appointed as an authorized officer under section 27;

Building Authority (建築事務監督) means the Director of Buildings;

building services installation (屋宇裝備裝置) means—

- (a) an air-conditioning installation;
- (b) an electrical installation;
- (c) a lift and escalator installation; or
- (d) a lighting installation;

central building services installation (中央屋宇裝備裝置) means—

- (a) a building services installation in a prescribed building that does not solely serve a unit of that building; or
- (b) a building services installation in a prescribed building that has no common area except an installation that—
 - (i) solely serves a unit of that building; and
 - (ii) is owned by a person who is not the owner of that building;

Certificate of Compliance Registration (遵行規定登記證明書) means a Certificate of Compliance Registration issued under section 10 and, where applicable, renewed under section 13;

code of practice (《守則》) means any code of practice issued or approved under section 40;

commercial building (商業建築物) means a building that is—

- (a) used for offices, shops or entertainment facilities; or
- (b) used for the purpose of any trade, business or profession (but not used as an industrial building);

common area (公用地方), in relation to a prescribed building—

- (a) means any area of the building other than the parts that have been specified in an instrument registered in the Land Registry as being for the exclusive use, occupation or enjoyment of an owner; and
- (b) includes, unless so specified, car parks, entrance lobbies, lift lobbies, corridors, staircases, common toilets, common store rooms, plant rooms, switch rooms, pipe ducts, cable ducts, refuse rooms, material recovery chambers, covered podia, covered playgrounds, occupants' clubhouses and building management offices;

composite building (綜合用途建築物) means, having regard to the definitions of **commercial building**, **industrial building** and **residential building**, a building that is—

- (a) partly for residential use and partly for non-residential use;
- (b) partly for industrial use and partly for non-industrial use; or
- (c) partly for commercial use and partly for non-commercial use;

consent to the commencement of building works (建築工程展開同意書) means—

- (a) a consent given by the Building Authority under section 14 of the Buildings Ordinance (Cap. 123); or
- (b) an approval given in respect of a building not governed by that Ordinance which serves, in relation to that building, a purpose similar to that of the consent;

data centre (數據中心) means a place for housing and operating computer systems, servers, telecommunications equipment and associated support components in a secure and controlled environment principally for providing data storage, data processing and data distribution services;

Note—

Examples of associated support components are—

- (a) uninterruptible power supply;
- (b) cooling system;
- (c) environmental control system;
- (d) fire services system; and
- (e) security system. (*Added 24 of 2025 s. 3*)

Data Disclosure Form (公開資料表格) means a Data Disclosure Form mentioned in section 22; (*Added 24 of 2025 s. 3*)

developer (發展者), in relation to a building or a proposed building, means the owner of the land on which the building is built or will be built;

Director (署長) means the Director of Electrical and Mechanical Services;

electrical installation (電力裝置), in relation to a building, means fixed equipment, distribution network or accessories for electricity distribution or utilization in the building;

electricity supplier (供電商) means a person who generates, supplies and sells electricity at low or high voltage for use in an electrical installation;

energy audit (能源審核) means a systematic review of the use of energy conducted pursuant to the requirement under section 22;

Energy Audit Form (能源審核表格) means an Energy Audit Form issued under section 22;

Form of Compliance (遵行規定表格) means a Form of Compliance issued under section 17;

hotel or guesthouse (酒店或賓館) has the meaning given by section 2A of the Hotel and Guesthouse Accommodation Ordinance (Cap. 349); (*Added 6 of 2020 s. 54*)

improvement notice (敦促改善通知書) means an improvement notice issued under section 26;

industrial building (工業建築物) means—

- (a) a building in which—
 - (i) articles are manufactured, altered, cleaned, repaired, ornamented, finished, adapted for sale, broken up or demolished; or
 - (ii) materials are transformed; or
- (b) a godown;

lift and escalator installation (升降機及自動梯裝置) means a system of equipment comprising—

- (a) a lift or an escalator as defined in section 2(1) of the Lifts and Escalators Ordinance (Cap. 618); and (*Amended 8 of 2012 ss. 156 & 160*)
- (b) any associated installation specified in a code of practice that is used for the operation of the lift or escalator;

lighting installation (照明裝置), in relation to a building, means a fixed electrical lighting system in the building including—

- (a) general lighting that provides a substantially uniform level of illumination throughout an area; or
 - (b) maintained type emergency lighting,
- but does not include non-maintained type emergency lighting;

major retrofitting works (主要裝修工程) means the works specified in Schedule 3;

occupation approval (佔用准許) means—

- (a) an occupation permit; or
- (b) an approval or a consent issued by a relevant authority to occupy a building for which no occupation permit is required under the Buildings Ordinance (Cap. 123);

occupation permit (佔用許可證) means an occupation permit or a temporary occupation permit issued under section 21(2) of the Buildings Ordinance (Cap. 123);

owner (擁有人), in relation to a prescribed building, has the same meaning as in the Buildings Ordinance (Cap. 123);

prescribed building (訂明建築物) means a building of a type set out in Schedule 1;

prescribed fee (訂明費用) means a fee prescribed in the regulation made under section 42;

property management company (物業管理公司), in relation to a building, means the business entity appointed by the owner of the building to manage the building;

railway station (鐵路車站)—

- (a) means those parts of the railway premises as defined in the Mass Transit Railway Ordinance (Cap. 556) designated by the MTR Corporation Limited as stations including any platform, concourse, entrance, exit, adit and plant room but excluding every other part of the railway premises including any track, tunnel, viaduct, ancillary building, ventilation shaft, siding, trackside area adjacent to a platform, and other similar structures and the land on which they are situated; and
- (b) does not include a designated rail stop of the North-west Railway as defined in the Mass Transit Railway Ordinance (Cap. 556);

Register of Registered Energy Assessors (註冊能源效益評核人紀錄冊) means the register kept under section 31;

registered energy assessor (註冊能源效益評核人) means a person who is for the time being registered under section 30;

relevant date (有關日期) means the date on which Part 2 (except sections 9 and 10) of the Buildings Energy Efficiency (Amendment) Ordinance 2025 (24 of 2025) comes into operation*; (*Added 24 of 2025 s. 3*)

residential building (住宅建築物) means a building solely used for residential purposes and includes—

- (a) student hostels and staff quarters; and
- (b) a portion of a composite building that is for residential use,

but does not include a hotel or guesthouse; (*Amended 6 of 2020 s. 54*)

responsible person (負責人), in relation to a building or a unit of a building, means a person who occupies or is in possession or control of the building or unit (whether under a lease or licence or otherwise);

Secretary (局長) means the Secretary for Environment and Ecology; (*Amended L.N. 144 of 2022*)

specified form (指明表格) means a form specified by the Director under section 46;

specified standards and requirements (指明標準及規定) means the standards and requirements for building energy efficiency or an energy audit set out in a code of practice;

stage one declaration (首階段聲明) means a declaration referred to in section 8(1);

stage two declaration (次階段聲明) means a declaration referred to in section 9(1);

unit (單位), in relation to a building, means—

- (a) a unit or a part of the building; or
- (b) 2 or more units or parts of the building that are—
 - (i) occupied by the same occupier for the purpose of the same undertaking; and
 - (ii) interconnected by an internal corridor, internal staircase or other internal access,

but does not include a common area of the building.

(Amended 6 of 2020 s. 54)

- (2) A note in the text of this Ordinance is for information only and has no legislative effect. *(Added 24 of 2025 s. 3)*

Editorial Note:

* Operation date: 20 September 2026.

3. Application to Government

- (1) Subject to this section, this Ordinance applies to the Government.
- (2) Neither the Government nor any public officer in the capacity as such is liable to be prosecuted for an offence under this Ordinance.
- (3) The Government is not liable to pay any fee under this Ordinance.

4. Limit of scope of application

- (1) This Ordinance does not apply to—
 - (a) a building of which the main electrical switch governing the electricity supply of the building has an approved loading not exceeding 100A, 1-phase or 3-phase;
 - (b) a building—

- (i) of not more than 3 storeys;
 - (ii) having a roofed-over area of not more than 65.03 m²; and
 - (iii) having a height of not more than 8.23 m;
 - (c) a proposed monument or a proposed historical building declared under section 2A of the Antiquities and Monuments Ordinance (Cap. 53); or
 - (d) a monument or a historical building declared under section 3 of the Antiquities and Monuments Ordinance (Cap. 53).
- (2) This Ordinance does not apply to a building if the Director is satisfied on a declaration by the owner of the building that the building will cease to exist within 12 months after the date of the declaration.
- (3) This Ordinance does not apply to the building services installations specified in Schedule 2.

5. Determination of application threshold

If the applicability of any provision of this Ordinance is to be determined by reference to any threshold including the approved loading of a main electrical switch, the rating of an installation or the floor area of any place, the calculation or measurement must, unless otherwise prescribed, be made at the time when the relevant works have been completed.

6. Jointly owned etc. building

If—

- (a) this Ordinance imposes a requirement on the owner of any building, common area of a building or central building services installation or on the responsible person of a unit of a building; and

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- (b) the building, common area or installation is jointly owned by 2 or more persons or the unit has 2 or more responsible persons,

compliance with the requirement by one of the joint owners or responsible persons is regarded as compliance with the requirement by every other joint owner or responsible person.

Part 2

Prescribed Buildings at Design Stage and Occupation Approval Stage

(Format changes—E.R. 1 of 2017)

Division 1—Application

7. Application of Part 2

- (1) This Part applies to a prescribed building (other than a building of type 14 or 15 specified in Schedule 1) in respect of which a consent to the commencement of building works for superstructure construction is given after 21 September 2012.
- (2) This Part applies to a prescribed building of types 14 and 15 specified in Schedule 1 in respect of which a consent to the commencement of building works for superstructure construction is given after the relevant date.

(Replaced 24 of 2025 s. 4)

Division 2—Declaration

8. Declaration at design stage

- (1) The developer of a proposed building must—
 - (a) make a declaration to be called a stage one declaration; and
 - (b) submit the declaration to the Director within 2 months after the day on which the consent to the commencement of building works for the superstructure construction of the building is given.

- (2) A stage one declaration must—
 - (a) declare that all building services installations to be provided by the developer in the proposed building at or before the time when a stage two declaration is made in respect of the building are designed, and will be installed and completed, in accordance with the specified standards and requirements;
 - (b) be in the specified form;
 - (c) be accompanied by the documents specified in the form; and
 - (d) be certified by a registered energy assessor to the effect that suitable design provisions have been incorporated into the planning and design of the building in accordance with the specified standards and requirements.
- (3) A developer who contravenes subsection (1) commits an offence and is liable—
 - (a) on conviction to a fine of \$500,000; and
 - (b) in the case of a continuing offence, to a further fine of \$10,000 for every day during which the offence continues.

9. Declaration at occupation approval stage

- (1) Subject to subsections (5) and (10), the developer of a building must—
 - (a) make a declaration to be called a stage two declaration; and
 - (b) submit the declaration to the Director within 4 months after the day on which the occupation approval is issued in respect of the building.
- (2) A stage two declaration must—

- (a) declare that all building services installations provided by the developer in the building at or before the time when the declaration is made have been designed, installed and completed in accordance with the specified standards and requirements;
 - (b) be in the specified form;
 - (c) be accompanied by the prescribed fee and the documents specified in the form; and
 - (d) be certified by a registered energy assessor to the effect that all building services installations provided by the developer in that building at or before the time when the declaration is made have been designed, installed and completed in accordance with the specified standards and requirements.
- (3) A certification by a registered energy assessor made for the purposes of subsection (2) is of no effect unless the assessor has, in the 30 days before the certification, personally inspected the building services installation covered by the certification.
- (4) The Director may require the developer to furnish any further information, or produce any additional document, that the Director considers reasonably necessary for the purposes of considering the making of the declaration.
- (5) The Director may, on an application in writing by the developer concerned, extend the period specified in subsection (1)(b).
- (6) The Director must not exercise the power under subsection (5) unless the developer satisfies the Director that there is a reasonable ground for the extension.
- (7) An extension granted under subsection (5) may be subject to any condition that the Director thinks fit.

- (8) If—
- (a) an extension granted under subsection (5) is subject to any condition under subsection (7) and the condition is contravened; or
 - (b) the ground on which the extension was granted no longer exists,
- the Director may, by a notice issued to the developer concerned, withdraw the extension.
- (9) If the Director withdraws an extension under subsection (8), the Director may issue a notice to the developer concerned directing the developer to submit a stage two declaration within a period specified in the notice.
- (10) If the Director issues a notice to a developer under subsection (9), the developer must comply with the direction in the notice.
- (11) A developer who contravenes subsection (1) or (10) commits an offence and is liable—
- (a) on conviction to a fine of \$1,000,000; and
 - (b) in the case of a continuing offence, to a further fine of \$10,000 for every day during which the offence continues.

Division 3—Certificate of Compliance Registration

10. Certificate of Compliance Registration for buildings

- (1) If a developer has submitted a stage two declaration in respect of a building, the Director must, subject to subsection (2), issue a Certificate of Compliance Registration to the developer in respect of the building within 3 months after the day on which the declaration is received.

- (2) The Director may refuse to issue a Certificate of Compliance Registration to a developer if—
 - (a) the Director has reasonable grounds to believe that the stage two declaration concerned or a document accompanying it pursuant to section 9(2)(c) is false or misleading in any material particular; or
 - (b) the Director has yet to receive any information or document from the developer under section 9(4).
- (3) If the Director refuses to issue a Certificate of Compliance Registration to a developer under subsection (2), the Director must, as soon as reasonably practicable—
 - (a) issue a notice of the refusal to the developer; and
 - (b) state the reasons for the refusal in the notice.
- (4) Subject to section 13(5), a Certificate of Compliance Registration is valid for 10 years.

11. Register of buildings issued with Certificate of Compliance Registration

- (1) The Director must keep a register of buildings issued with a Certificate of Compliance Registration.
- (2) The register must contain, in respect of every building entered in the register—
 - (a) the name and address of the building;
 - (b) the registration number, the date of issue and the expiry date of the Certificate of Compliance Registration issued in respect of the building; and
 - (c) any other particulars that the Director thinks fit.
- (3) To enable a member of the public to ascertain whether a building is issued with a Certificate of Compliance Registration, the Director must—

- (a) make a copy of the register kept under subsection (1) available for members of the public to inspect free of charge at all reasonable times; and
 - (b) make the content of the register available for inspection free of charge through the internet.
- (4) The register kept under subsection (1) must be maintained in the form and manner, and updated at any interval, that the Director thinks fit.

12. Duties of owners and responsible persons of building with Certificate of Compliance Registration

- (1) This section applies in relation to a building in respect of which a Certificate of Compliance Registration has been issued.
- (2) The owner of a building must ensure that at all times a Certificate of Compliance Registration is in force in respect of the building.
- (3) The owner of a building must ensure that—
 - (a) the central building services installations in the building are maintained to a standard not lower than that applied in the first Certificate of Compliance Registration issued in respect of the building; and
 - (b) if a Form of Compliance has been issued in respect of any central building services installation in the building, the installation is maintained to a standard not lower than that applied in the latest Form of Compliance issued in respect of the installation.
- (4) The responsible person of a unit of a building must ensure that—
 - (a) the building services installations serving the unit that are not the central building services installations in

the building meet, and are maintained to, a standard not lower than that applied in the first Certificate of Compliance Registration issued in respect of the building; and

- (b) if a Form of Compliance has been issued in respect of any building services installation serving the unit, the installation is maintained to a standard not lower than that applied in the latest Form of Compliance issued in respect of the installation.
- (5) A person who contravenes subsection (2) commits an offence and is liable on conviction to a fine at level 6.
- (6) A person who contravenes subsection (3) or (4) commits an offence and is liable on conviction to a fine at level 5.

13. Renewal of Certificate of Compliance Registration

- (1) The Director may, on an application, renew a Certificate of Compliance Registration.
- (2) An application for the renewal of a Certificate of Compliance Registration must—
 - (a) be in the specified form;
 - (b) be accompanied by the prescribed fee and the documents specified in the form; and
 - (c) be certified by a registered energy assessor to the effect that—
 - (i) the central building services installations in the building concerned are maintained to a standard not lower than that applied in the first Certificate of Compliance Registration issued in respect of the building; and
 - (ii) if a Form of Compliance has been issued in respect of any central building services installation in the

building, the installation is maintained to a standard not lower than that applied in the latest Form of Compliance issued in respect of the installation.

- (3) A certification by a registered energy assessor made for the purposes of subsection (2) is of no effect unless the assessor has, in the 30 days before the certification, personally inspected the building services installation covered by the certification.
- (4) The Director may require the owner of the relevant central building services installation to furnish any further information, or produce any additional document, that the Director considers reasonably necessary for the purposes of considering the application.
- (5) Subject to subsection (6), a renewed Certificate of Compliance Registration is effective from the date of renewal.
- (6) If an application for renewal of a Certificate of Compliance Registration is made during the 12 months preceding the expiry of the certificate, the renewed certificate is effective from the date of that expiry.

14. Duplicate of Certificate of Compliance Registration available

- (1) The Director may, on an application by the developer of a building, the responsible person of a unit of a building or the owner of a central building services installation in a building, issue to the applicant a duplicate of a Certificate of Compliance Registration issued in respect of the building.
- (2) An application under subsection (1) must—
 - (a) be in the specified form; and
 - (b) be accompanied by the prescribed fee and the documents specified in the form.

Division 4—Exemption from specified standards and

requirements

15. Exemption from specified standards and requirements

- (1) The developer or owner of a building or the responsible person of a unit of a building may apply to the Director for an exemption of any building services installation in the building from any provision of the specified standards and requirements.
- (2) An application under subsection (1) must be in writing.
- (3) The Director may, on an application under subsection (1), grant an exemption from any provision of the specified standards and requirements in respect of any building services installation if the Director is satisfied that it is, for heritage conservation or technical or operational reasons, undesirable or impracticable for the installation to comply with the provision.
- (4) An exemption may be granted under subsection (3) in respect of all building services installations covered by an application or any of the installations.
- (5) An exemption granted under subsection (3) may be subject to any condition that the Director thinks fit.
- (6) If—
 - (a) an exemption granted under subsection (3) is subject to any condition under subsection (5) and the condition is contravened; or
 - (b) the ground on which the exemption was granted no longer exists,the Director may, by a notice issued to the developer, owner or responsible person concerned, withdraw the exemption.

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- (7) A notice under subsection (6) must not take effect before the expiry of 28 days after the day on which it is issued.
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Part 3

Major Retrofitting Works in Prescribed Buildings

(Format changes—E.R. 1 of 2017)

16. Application of Part 3

- (1) If major retrofitting works carried out in respect of any central building services installation of, or any building services installation that serves any unit or common area of, a prescribed building (other than a building of type 14 or 15 specified in Schedule 1) are completed after 21 September 2012, this Part applies to the building.
- (2) If major retrofitting works carried out in respect of any central building services installation of, or any building services installation that serves any unit or common area of, a building of types 14 and 15 specified in Schedule 1 are completed after the relevant date, this Part applies to the building.

(Replaced 24 of 2025 s. 5)

17. Duty to obtain Form of Compliance for major retrofitting works

- (1) Subject to subsection (4), if major retrofitting works are carried out in respect of any building services installation that serves any unit or common area of a building, a person who is the responsible person of the unit or the owner of the common area, as may be appropriate, as at the completion of the works must, within 2 months after the completion of the works, obtain a Form of Compliance issued in respect of the installation.
- (2) Subject to subsection (4), if major retrofitting works are carried out in respect of any central building services

installation, a person who is the owner of the installation as at the completion of the works must, within 2 months after the completion of the works, obtain a Form of Compliance issued in respect of the installation.

- (3) For the purposes of subsections (1) and (2), major retrofitting works carried out in respect of any building services installation are regarded as completed when—
 - (a) the works have been carried out and the installation is ready to be used for its principal function as designed; or
 - (b) if the works involve 2 or more installations, the works have been carried out and all the installations are ready to be used for their principal functions as designed.
- (4) The Director may, on an application in writing by the responsible person or owner concerned, extend the period specified in subsection (1) or (2) if the Director is satisfied that there is a reasonable ground for the extension.
- (5) An extension granted under subsection (4) may be subject to any condition that the Director thinks fit.
- (6) If—
 - (a) an extension granted under subsection (4) is subject to any condition under subsection (5) and the condition is contravened; or
 - (b) the ground on which the extension was granted no longer exists,the Director may, by a notice issued to the responsible person or owner concerned, withdraw the extension.
- (7) If the Director withdraws an extension under subsection (6), the Director may issue a notice to the responsible person or owner concerned directing the responsible person or owner to

obtain a Form of Compliance issued in respect of the building services installation within a period specified in the notice.

- (8) If the Director issues a notice to a person under subsection (7), the person must comply with the direction in the notice.
- (9) A person who fails to comply with subsection (1), (2) or (8) commits an offence and is liable on conviction to a fine at level 5.

18. Requirements applicable to Form of Compliance

- (1) A Form of Compliance must—
 - (a) be issued by a registered energy assessor;
 - (b) be in the specified form;
 - (c) be accompanied by the documents specified in the form;
 - (d) contain a declaration by the assessor that—
 - (i) the assessor has, in the 30 days before the declaration, personally inspected the building services installations in respect of which the major retrofitting works were carried out and which are specified in the Form of Compliance; and
 - (ii) the assessor is satisfied that the installations comply with the specified standards and requirements.
- (2) If a Form of Compliance is issued in respect of any building services installation, the responsible person of the relevant unit or the owner of the relevant common area of the building or, in the case of a central building services installation, the owner of the installation must maintain the installation to a standard not lower than that applied in that Form of Compliance.
- (3) A responsible person or an owner who contravenes subsection (2) commits an offence and is liable on conviction to a fine at level 5.

- (4) A registered energy assessor who—
- (a) inspects a building services installation in any building or any unit of a building on the instruction of a responsible person or an owner acting in compliance with section 17(1) or (2); and
 - (b) is satisfied that the installation complies with the specified standards and requirements,
- must issue a Form of Compliance accordingly and comply with subsection (5).
- (5) A registered energy assessor who issues a Form of Compliance must—
- (a) send a copy of it together with the document specified in the Form of Compliance to the Director; and
 - (b) send another copy of it to—
 - (i) the property management company of the building concerned; or
 - (ii) if there is no such property management company or the property management company cannot be found or ascertained, the owner of the building.
- (6) A registered energy assessor who fails to comply with subsection (5) commits an offence and is liable on conviction to a fine at level 3.

19. Duplicate of Form of Compliance available

- (1) The Director may, on an application by a responsible person of a unit of a building or the owner of a common area of a building or a central building services installation in a building, issue to the applicant a duplicate of the copy of a Form of Compliance sent to the Director under section 18(5) in respect of any building services installation serving

that unit or common area or that central building services installation.

- (2) An application under subsection (1) must—
 - (a) be in the specified form; and
 - (b) be accompanied by the prescribed fee and the documents specified in the form.

20. Exemption from specified standards and requirements

- (1) The responsible person of a unit of a building or the owner of a common area of a building may apply to the Director for an exemption of any building services installation serving the unit or common area from any provision of the specified standards and requirements.
- (2) The owner of a central building services installation in a building may apply to the Director for an exemption of the installation from any provision of the specified standards and requirements.
- (3) An application under subsection (1) or (2) must be in writing.
- (4) The Director may, on an application under subsection (1) or (2), grant an exemption from any provision of the specified standards and requirements in respect of any building services installation if the Director is satisfied that it is, for heritage conservation or technical or operational reasons, undesirable or impracticable for the installation to comply with the provision.
- (5) An exemption may be granted under subsection (4) in respect of all building services installations covered by an application or any of the installations.
- (6) An exemption granted under subsection (4) may be subject to any condition that the Director thinks fit.
- (7) If—

- (a) an exemption granted under subsection (4) is subject to any condition under subsection (6) and the condition is contravened; or
 - (b) the ground on which the exemption was granted no longer exists,
- the Director may, by a notice issued to the responsible person or owner concerned, withdraw the exemption.
- (8) A notice under subsection (7) must not take effect before the expiry of 28 days after the day on which it is issued.
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Part 4

Energy Audit

(Format changes—E.R. 1 of 2017)

21. Application of Part 4

- (1) Subject to subsections (2), (3) and (4), this Part applies to a building specified in Schedule 4. *(Amended 24 of 2025 s. 6)*
- (2) This Part does not apply to a building if the Director is satisfied on a declaration by the owner of the building that the building will cease to fall within Schedule 4 within 12 months after the date of the declaration.
- (3) This Part does not apply to a building specified in Schedule 4 (other than a building of type 10 or 11 specified in that Schedule) if—
 - (a) the gross floor area of the building does not exceed 7 000 m²; and
 - (b) an energy audit is required to be carried out in respect of it on or after the relevant date. *(Added 24 of 2025 s. 6)*
- (4) This Part does not apply to a building if the Director is advised in writing by the head of a department of the Government that carrying out an energy audit in respect of the building would be contrary to the interests of national security. *(Added 24 of 2025 s. 6)*
- (5) In subsection (3)—

gross floor area (總樓面面積) has the meaning given by regulation 23(3)(a) of the Building (Planning) Regulations (Cap. 123 sub. leg. F). *(Added 24 of 2025 s. 6)*
- (6) In subsection (4)—

building (建築物) includes a portion of a building. *(Added 24 of 2025 s. 6)*

22. Energy audit requirement

- (1) The owner of a building must cause an energy audit to be carried out in accordance with this section at intervals specified in Schedule 5 in respect of the central building services installations of the building. *(Amended 24 of 2025 s. 7)*
- (2) The first energy audit for the central building services installations of a building (whether or not issued with a Certificate of Compliance Registration) must be carried out according to the schedule specified in Schedule 6. *(Amended 24 of 2025 s. 7)*
- (3) *(Repealed 24 of 2025 s. 7)*
- (4) An energy audit must be carried out—
 - (a) by a registered energy assessor; and
 - (b) in accordance with a code of practice.
- (5) A registered energy assessor who carries out an energy audit in respect of a building must, within 30 days after issuing an Energy Audit Form, send the following documents to the Director— *(Amended 24 of 2025 s. 7)*
 - (a) a copy of the Energy Audit Form;
 - (b) an energy audit report on the audit; and
 - (c) a Data Disclosure Form, for publishing the technical information contained in the energy audit report. *(Amended 24 of 2025 s. 7)*
- (6) An Energy Audit Form or a Data Disclosure Form issued under subsection (5) must— *(Amended 24 of 2025 s. 7)*
 - (a) be in the specified form; and

- (b) be accompanied by the documents specified in the form.
- (6A) The Director may publish the technical information contained in a Data Disclosure Form—
 - (a) by making the information available for inspection free of charge on a website specified by the Director; and
 - (b) by providing the information for members of the public to inspect free of charge at all reasonable times. (*Added 24 of 2025 s. 7*)
- (7) An Energy Audit Form or a Data Disclosure Form issued in respect of a building ceases to have effect on the issue of another Energy Audit Form or another Data Disclosure Form (as the case may be) in respect of the building. (*Amended 24 of 2025 s. 7*)
- (8) An owner of a building who contravenes subsection (1) commits an offence and is liable on conviction to a fine at level 5.
- (9) A registered energy assessor who contravenes subsection (5) commits an offence and is liable on conviction to a fine at level 3.

23. Owner to exhibit Energy Audit Form

- (1) The owner of a building in respect of which an Energy Audit Form is in force must exhibit a copy of the form in a conspicuous position at the main entrance of the building.
- (2) An owner who contravenes subsection (1) commits an offence and is liable on conviction to a fine at level 5.

24. Duplicate of Energy Audit Form available

- (1) The Director may, on an application by the owner of a building, issue to the applicant a duplicate of the copy of an Energy Audit Form issued in respect of the building.

- (2) An application under subsection (1) must—
 - (a) be in the specified form; and
 - (b) be accompanied by the prescribed fee and the documents specified in the form.

25. Exemption from energy audit requirement

- (1) The owner of a building may apply to the Director for an exemption of any building services installation in the building from the requirement under section 22.
- (2) An application under subsection (1) must be in writing.
- (3) The Director may, on an application under subsection (1), grant an exemption from the requirement under section 22 in respect of any building services installation if the Director is satisfied that it is, for heritage conservation or technical or operational reasons, undesirable or impracticable for the installation to comply with the requirement.
- (4) An exemption may be granted under subsection (3) in respect of all building services installations covered by an application or any of the installations.
- (5) An exemption granted under subsection (3) may be subject to any condition that the Director thinks fit.
- (6) If—
 - (a) an exemption granted under subsection (3) is subject to any condition under subsection (5) and the condition is contravened; or
 - (b) the ground on which the exemption was granted no longer exists,the Director may, by a notice issued to the owner concerned, withdraw the exemption.

- (7) A notice under subsection (6) must not take effect before the expiry of 28 days after the day on which it is issued.

25A. Energy audit for buildings affected by section 21(2), (3) or (4) or 25

- (1) If—
- (a) under section 21(2), this Part does not apply to a building; and
 - (b) subsequently the Director is no longer satisfied in the manner mentioned in that section (whether or not the Director receives a notice under section 25B),
- this Part applies to the building with effect from the date of expiry of the 12-month period after the date of the declaration under section 21(2).
- (2) If—
- (a) under section 21(3), this Part does not apply to a building; and
 - (b) subsequently the Director is satisfied that any condition specified in that section is no longer met (whether or not the Director receives a notice under section 25B),
- this Part applies to the building with effect from the date on which the Director is so satisfied.
- (3) If—
- (a) under section 21(4), this Part does not apply to a building; and
 - (b) subsequently the head of a department of the Government sends a notice in writing to the Director stating that carrying out an energy audit in respect of the building would no longer be contrary to the interests of national security,

this Part applies to the building with effect from the date of the notice.

- (4) If—
- (a) any building services installation in a building is exempted under section 25(3); and
 - (b) subsequently the Director withdraws the exemption under section 25(6) by a notice in writing specifying a date of withdrawal issued to the owner of the building,
- section 22 applies to the building services installation in the building with effect from the date.
- (5) If—
- (a) this Part applies to a building under subsection (1), (2) or (3) with effect from a date; or
 - (b) section 22 applies to any building services installation in a building under subsection (4) with effect from a date,
- the owner of the building must cause an energy audit to be carried out in respect of the central building services installations of, or the building services installations in (as the case may be), the building in accordance with section 22(4) within the 12-month period after the date or, if the period is extended under subsection (6), the period as extended.
- (6) The Director may, on an application in writing by the owner of the building concerned, extend the 12-month period specified in subsection (5) if the Director is satisfied that there is a reasonable ground for the extension.
- (7) An energy audit carried out in compliance with subsection (5) is to be regarded as an energy audit carried out in compliance with section 22.
- (8) An owner of a building who contravenes subsection (5) commits an offence and is liable on conviction to a fine at level 5.

(Added 24 of 2025 s. 8)

25B. Owner of building affected by section 21(2) or (3) must notify changes in circumstance

If this Part does not apply to a building under section 21(2) or (3), the owner of the building must, within 28 days after becoming aware of any change in the circumstance of the building that may affect the non-application of this Part to the building, send a notice of the change in writing to the Director.

(Added 24 of 2025 s. 8)

Part 5

Improvement Notice

(Format changes—E.R. 1 of 2017)

26. Director may issue improvement notice

- (1) The Director may issue an improvement notice to the developer or owner of a prescribed building, the owner of a common area of a prescribed building or the responsible person of a unit of a prescribed building if the Director is of the opinion that the developer, owner or responsible person—
 - (a) is contravening a requirement under this Ordinance; or
 - (b) has contravened a requirement under this Ordinance in circumstances that make it likely that the contravention will continue or be repeated.
- (2) An improvement notice issued to a person must—
 - (a) state the Director's opinion referred to in subsection (1);
 - (b) specify the requirement that is being or has been contravened; and
 - (c) contain a direction directing the person to remedy the contravention within the period specified in the notice.
- (3) An improvement notice may contain directions about measures to be taken which may be framed wholly or partly by reference to any code of practice.
- (4) The Director may amend or withdraw an improvement notice by issuing a notice to the developer, owner or responsible person concerned.

- (5) A person who contravenes any direction contained in an improvement notice under subsection (2) or (3) commits an offence and is liable—
- (a) on conviction to a fine at level 4; and
 - (b) in the case of a continuing offence, to a further fine of \$1,000 for every day during which the offence continues.
- (6) If, after an improvement notice has been issued to a developer, owner or responsible person (*the former party*) but before the period specified in the notice under subsection (2)(c) expires and before the contravention concerned is remedied, a person replaces the former party as the developer, owner or responsible person of the relevant building, common area or unit, the following provisions apply—
- (a) the former party must, within 7 days after the change, inform the Director of the change; and
 - (b) the improvement notice issued to the former party ceases to have effect.
- (7) A person who, without reasonable excuse, contravenes subsection (6)(a) commits an offence and is liable on conviction to a fine at level 3.
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Part 6

Enforcement

(Format changes—E.R. 1 of 2017)

27. Authorized officers

The Director may appoint any public officer in the Electrical and Mechanical Services Department at or above the rank of Assistant Building Services Inspector as an authorized officer.

28. Authorized officers to prove identity

An authorized officer must, if so requested, produce written proof of his or her identity as an authorized officer before exercising any power conferred on an authorized officer by this Ordinance.

29. Powers of authorized officers

- (1) An authorized officer may, for the purposes of ascertaining whether this Ordinance has been or is being complied with—
 - (a) subject to subsection (3), enter during reasonable hours any part of a prescribed building (including a prescribed building under construction) that is not for residential use;
 - (b) inspect, examine, monitor and test any building services installation in a prescribed building;
 - (c) require the responsible person of any prescribed building or any unit of a prescribed building or any person who has been involved in the installation of any building services installation in any prescribed building to produce—

- (i) any document relating to the building services installations in the building including any drawing, test record on the energy efficiency performance of the building services installations, purchasing order and works contract; or
 - (ii) any other document, information or article that the officer reasonably believes to be relevant to an offence or a suspected offence under this Ordinance; and
- (d) take a copy of any drawing, record, order, contract, document or information referred to in paragraph (c).
- (2) An authorized officer may take with him or her any assistant and equipment as may be necessary for the exercise of any power under subsection (1).
- (3) The power conferred by subsection (1)(a) may not be exercised unless—
 - (a) the Director has given at least 14 days' notice to the responsible person of the relevant part of the prescribed building;
 - (b) the Director has given shorter notice to which the responsible person agrees; or
 - (c) the responsible person agrees to waive any notice.
- (4) A notice given under subsection (3) must state the reason for the proposed entry.
- (5) A person who, without reasonable excuse—
 - (a) fails to comply with a requirement made under subsection (1)(c); or

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(b) obstructs any authorized officer or any assistant referred to in subsection (2) in the exercise of any power under this Ordinance,

commits an offence and is liable on conviction to a fine at level 5 and to imprisonment for 6 months.

(6) A person who, in purported compliance with a requirement made under subsection (1)(c), knowingly or recklessly provides any false or misleading information commits an offence and is liable on conviction to a fine at level 6 and to imprisonment for 6 months.

Part 7

Registration of Registered Energy Assessors

(Format changes—E.R. 1 of 2017)

30. Registration of registered energy assessor

The Director may, on an application, register as a registered energy assessor any person who meets the criteria provided for in the regulation made under section 42.

31. Register of Registered Energy Assessors

- (1) The Director must keep a Register of Registered Energy Assessors.
 - (2) The Register of Registered Energy Assessors must contain such information as may be provided for in the regulation made under section 42.
 - (3) To enable a member of the public to ascertain whether any person is a registered energy assessor, the Director must—
 - (a) make a copy of the Register of Registered Energy Assessors available for members of the public to inspect free of charge at all reasonable times; and
 - (b) make the content of the Register available for inspection free of charge through the internet.
 - (4) The Register of Registered Energy Assessors must be maintained in the form and manner, and updated at any interval, that the Director thinks fit.
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Part 8

Appeal

(Format changes—E.R. 1 of 2017)

32. Appeal to appeal board

- (1) A person who is aggrieved by—
- (a) a decision of the Director to refuse to issue a Certificate of Compliance Registration under section 10;
 - (b) a decision of the Director to refuse to renew a Certificate of Compliance Registration under section 13;
 - (c) a decision of the Director to issue or amend an improvement notice under section 26;
 - (d) a direction contained in an improvement notice under section 26(2)(c) or (3);
 - (e) a decision of the Director to refuse to grant an extension under section 9 or 17;
 - (f) a decision of the Director to withdraw an extension under section 9 or 17;
 - (g) a decision of the Director to refuse to grant an exemption under section 15, 20 or 25;
 - (h) a decision of the Director to withdraw an exemption under section 15, 20 or 25;
 - (i) a decision of the Director to refuse to register a person as a registered energy assessor under section 30;
 - (j) a decision of the Director to issue a notice under section 9(9) or 17(7);
 - (k) a decision of the Director to impose a condition under section 9(7), 15(5), 17(5), 20(6) or 25(5);

- (l) a decision of the Director to refuse to renew the registration of a registered energy assessor under the regulation made under section 42; or
 - (m) a decision of the Director to take disciplinary action against a registered energy assessor under the regulation made under section 42,
- may appeal to an appeal board against the decision or direction.
- (2) An appeal under subsection (1) against a decision or direction does not suspend the decision or direction unless the Director decides otherwise.

33. How to lodge an appeal

- (1) An appellant may lodge an appeal by issuing a notice of appeal to the Director.
- (2) A notice of appeal must be issued within—
 - (a) 14 days after the date on which the appellant is notified of the decision or direction appealed against; or
 - (b) such longer period as the Director may allow.
- (3) A notice of appeal must—
 - (a) be in the specified form;
 - (b) be accompanied by a copy of any document the appellant intends to rely on; and
 - (c) contain the particulars of any witness that the appellant intends to call at the hearing.
- (4) On receiving a notice of appeal, the Director must deliver it to the Secretary as soon as reasonably practicable.

34. Appeal board panel

- (1) The Secretary is to appoint the members of a Buildings

Energy Efficiency Appeal Board Panel which is to consist of—

- (a) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the electrical discipline;
 - (b) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the mechanical discipline;
 - (c) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the building services discipline;
 - (d) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the environmental discipline; (*Amended 24 of 2025 s. 9*)
 - (da) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the energy discipline; (*Added 24 of 2025 s. 9*)
 - (e) not more than 10 members who are members of the Engineers Registration Board established under the Engineers Registration Ordinance (Cap. 409); and (*Amended 24 of 2025 s. 9*)
 - (f) not more than 10 members who are professional members of the Hong Kong Institute of Qualified Environmental Professionals. (*Added 24 of 2025 s. 9*)
- (2) A person who is in 2 or more of the 7 disciplines mentioned in paragraphs (a), (b), (c), (d), (da), (e) and (f) of subsection (1) is, for the purpose of subsections (1) and (7)(d), regarded as being in only one of those disciplines designated by the Secretary at the time of the person's appointment. (*Amended 24 of 2025 s. 9*)

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- (3) A person is not eligible for appointment under subsection (1) if the person—
- (a) is a public officer; or
 - (b) has not practised in the engineering profession in Hong Kong for at least 10 years.
- (4) A member of the appeal board panel is to be appointed for a term of 3 years and may be reappointed on the expiry of a term.
- (5) The Secretary must give notice in the Gazette of any appointment or reappointment under this section.
- (6) A member of the appeal board panel may, at any time, resign by issuing a notice in writing to the Secretary.
- (7) The Secretary may terminate the office of a member of the appeal board panel if the Secretary is satisfied that the member—
- (a) has become a public officer;
 - (b) has become bankrupt or has entered into a voluntary arrangement within the meaning of section 2 of the Bankruptcy Ordinance (Cap. 6) with his or her creditors;
 - (c) is incapacitated by physical or mental illness;
 - (d) has ceased to be of the capacity by virtue of which he or she was appointed; or
 - (e) is otherwise unable or unfit to perform the functions of a member.
- (8) The Secretary must give notice in the Gazette of any termination of office under this section.

35. Appeal board

- (1) Within 21 days after receiving a notice of appeal delivered under section 33, the Secretary must appoint from among

the members of the appeal board panel a Buildings Energy Efficiency Appeal Board to hear the appeal.

- (2) An appeal board is to consist of 7 members appointed from all 7 categories of members specified in section 34(1).
(Amended 24 of 2025 s. 10)
- (3) Subject to section 36(5), if a vacancy occurs in an appeal board, the Secretary must, as soon as reasonably practicable, make an appointment from among the members of the appeal board panel to fill the vacancy.
- (4) The members of an appeal board must elect a Chairperson from among themselves to preside at the hearing of the appeal.
- (5) The members of an appeal board may be paid out of the general revenue any remuneration that the Financial Secretary determines.

36. Proceedings of appeal board

- (1) The quorum for a meeting of an appeal board is 3 members.
- (2) Any question before an appeal board must be determined by a majority of the members.
- (3) If there is an equality of votes in respect of any question to be determined in an appeal, the Chairperson of an appeal board has a casting vote in addition to his or her original vote.
- (4) An appeal board may perform any of its functions, and its proceedings are valid, despite—
 - (a) subject to subsection (5), a vacancy in the board; or
 - (b) a defect in the appointment or qualification of a person purporting to be a member of the board.
- (5) If—

- (a) any vacancy occurs in the office of an original member of the appeal board; and
 - (b) as a result fewer than 3 original members of the board remain in office,
- the board must be dissolved and the Secretary is deemed to have received a notice of appeal delivered under section 33 in relation to the subject matter of the appeal.
- (6) In the performance of their functions under this Ordinance, the members of an appeal board have the same privileges and immunities as a judge of the Court of First Instance has in civil proceedings in that court.
 - (7) A person appearing before an appeal board as a witness, a party to an appeal or a representative of a party to an appeal is entitled to the same privileges and immunities as he or she would have in civil proceedings in the Court of First Instance.
 - (8) Subject to this Ordinance, an appeal board may determine its own procedure.

37. Hearing

- (1) The Chairperson of an appeal board must notify the appellant and the Director of the date, time and place of the hearing of the appeal at least 14 days before the hearing.
- (2) At any proceedings before an appeal board—
 - (a) the appellant may be represented by—
 - (i) a barrister or solicitor; or
 - (ii) (if the appellant is a body corporate) an individual authorized by the appellant; and
 - (b) the Director may be represented by—
 - (i) a barrister or solicitor; or
 - (ii) a public officer.

- (3) An appeal board may engage any barrister or solicitor to attend a hearing of the board to advise it on any matter relating to the appeal.
- (4) The hearing of an appeal must be open to the public unless the appeal board determines that there is a good reason for it to be held in camera.
- (5) An appeal board may, by a notice signed by the Chairperson and issued to a person—
 - (a) direct the person to attend before the board and to give evidence; or
 - (b) direct the person to produce documents.
- (6) A person who fails to comply with a direction under subsection (5) commits an offence and is liable on conviction to a fine at level 5.
- (7) Despite subsection (5), no person to whom a direction is given under that subsection is required to give any evidence or produce any document which tends to incriminate himself or herself.

38. Appeal board may authorize inspection of building services installation

- (1) If an appeal board reasonably believes that a building services installation is relevant to the determination of an appeal, the board may, by an authorization signed by the Chairperson of the board—
 - (a) authorize a person to inspect the installation; and
 - (b) authorize the person to enter any unit that is not for residential use for the purposes of the inspection.
- (2) A person who, without reasonable excuse, obstructs a person authorized under subsection (1) in the inspection commits an

offence and is liable on conviction to a fine at level 5 and to imprisonment for 6 months.

39. Determination of appeal

- (1) An appeal board may—
 - (a) confirm, vary or revoke the decision or direction appealed against; or
 - (b) substitute its own decision or direction for the decision or direction appealed against.
 - (2) An appeal board may make any order that it thinks fit with regard to the payment of—
 - (a) costs or expenses of the appeal proceedings; or
 - (b) costs or expenses of the Director or any other person in the proceedings.
 - (3) The costs and expenses ordered to be paid under subsection (2) are recoverable as a civil debt.
 - (4) An appeal board must issue to the appellant and the Director a notice of its determination and the reasons for it.
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Part 9

Code of Practice

(Format changes—E.R. 1 of 2017)

40. Code of practice

- (1) To provide practical guidance in respect of any standard or requirement under this Ordinance, the Director may—
 - (a) issue any code of practice that the Director thinks fit; or
 - (b) approve any code of practice issued by any body or authority that the Director thinks fit.
- (2) A code of practice may include—
 - (a) building energy efficiency standards and requirements;
 - (b) the requirements for assessment of the energy efficiency performance of a building services installation; and
 - (c) the requirements for carrying out an energy audit.
- (3) The Director must—
 - (a) by a notice published in the Gazette identify a code of practice issued or approved under subsection (1);
 - (b) specify in the notice the commencement date of the code of practice; and
 - (c) specify the requirement under this Ordinance for which the code of practice is issued or approved.
- (4) The Director may, from time to time, by a notice published in the Gazette—
 - (a) revise any code of practice issued under subsection (1); and

- (b) approve any revision of any code of practice approved under subsection (1).
- (5) A notice under subsection (4) must specify—
 - (a) the code of practice being revised;
 - (b) the commencement date of the revision; and
 - (c) if applicable, the requirement under this Ordinance for which the revision is made or approved.
- (6) The Director may, at any time, by a notice published in the Gazette withdraw any code of practice approved under subsection (1).
- (7) The Director must, before exercising the power conferred by subsection (1), (4) or (6), consult as the Director thinks fit any organizations or individuals who, in the opinion of the Director, have technical expertise or professional experience in building services installations.
- (8) A notice under subsection (6) must specify the date on which the withdrawal takes effect.
- (9) A reference to a code of practice is a reference to the code of practice as revised from time to time in accordance with this section.
- (10) A notice under subsection (3), (4) or (6) is not subsidiary legislation.

41. Admissibility of code of practice in evidence

- (1) If, in any legal proceedings, the court or appeal board is satisfied that a provision of a code of practice is relevant to the determination of a matter that is in issue in the proceedings—
 - (a) the code of practice is admissible in evidence in the proceedings; and

- (b) proof that the person contravened or did not contravene a relevant provision of the code of practice may be relied on by any party to the proceedings as tending to establish or negate the matter.
- (2) In any legal proceedings, the production of a Government Printer's copy of an issue of the Gazette in which a code of practice is identified is sufficient proof of the content of the code of practice.
- (3) In this section—
- court*** (法院) includes a magistrate;
- legal proceedings*** (法律程序) includes proceedings before an appeal board.
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Part 10

Miscellaneous Matters

(Format changes—E.R. 1 of 2017)

42. Secretary may make regulations

- (1) The Secretary may make regulations—
 - (a) prescribing fees payable under this Ordinance;
 - (b) providing for the registration and regulation of, and disciplinary matters in respect of, registered energy assessors; and
 - (c) providing for such matters as are necessary for giving full effect to the provisions of this Ordinance.
- (2) Regulations made under subsection (1) may prescribe a penalty of a fine at level 6 and imprisonment for 1 year for an offence under the regulations.

43. Secretary may amend Schedules

- (1) The Secretary may, subject to the approval of the Legislative Council, amend Schedule 1, 2, 3, 4 or 5 by notice published in the Gazette.
- (2) The Secretary may amend Schedule 6 by notice published in the Gazette.
- (3) A notice made under this section may contain such incidental, consequential, supplemental, transitional or saving provisions as may be necessary or expedient in consequence of the notice.

(Amended 24 of 2025 s. 11)

44. Periods may be extended after expiry

A period which the Director is empowered under this Ordinance to extend may be extended either before or after its expiry.

45. Director may delegate power

The Director may in writing authorize any public officer to exercise any power vested in the Director or to perform any duty imposed on the Director by any provision of this Ordinance.

46. Director may specify forms

- (1) The Director may specify any form to be used for the purposes of any provision of this Ordinance.
- (2) If the Director specifies a form under subsection (1), the Director must make copies of the form available—
 - (a) at the office of the Electrical and Mechanical Services Department during normal office hours; and
 - (b) in any other manner that the Director thinks fit.

47. Issue of notice etc.

- (1) Subject to subsection (2), a notice or any other document required to be issued, submitted or sent under this Ordinance is to be regarded as having been duly issued, submitted or sent if—
 - (a) in the case of the Director—
 - (i) it is addressed to the Director and delivered to the head office of the Electrical and Mechanical Services Department; or
 - (ii) it is sent to the Director by registered post addressed to the Director at the head office of the Electrical and Mechanical Services Department;
 - (b) in the case of an individual—
 - (i) it is delivered by hand to the individual; or

- (ii) it is sent to the individual by registered post addressed to the individual at the individual's last known address;
 - (c) in the case of a company—
 - (i) it is delivered by hand to any officer of the company; or
 - (ii) it is left at, or sent by registered post to, the company's registered office in Hong Kong;
(Amended 28 of 2012 ss. 912 & 920)
 - (d) in the case of a body corporate other than a company—
 - (i) it is delivered by hand to any place in Hong Kong at which the body carries on business and given to a person apparently concerned in the management of, or apparently employed by, the body; or
 - (ii) it is sent to the body by registered post addressed to the body at the body's last known address; or
 - (e) in the case of a partnership—
 - (i) it is delivered by hand to any place in Hong Kong at which the partnership carries on business and given to a person apparently concerned in the management of, or apparently employed by, the partnership; or
 - (ii) it is sent to the partnership by registered post addressed to the partnership at the partnership's last known address.
- (2) A notice issued to a corporation registered under section 8 of the Building Management Ordinance (Cap. 344) in respect of any common area of a building is deemed to be a notice issued to all owners of undivided shares in the land on which the building is situated.

48. False information etc. prohibited

- (1) A person who forges any declaration, Certificate of Compliance Registration, Form of Compliance, Data Disclosure Form or Energy Audit Form or any other document required by, under or for the purposes of this Ordinance commits an offence. (*Amended 24 of 2025 s. 12*)
- (2) A person who knowingly or recklessly provides any false or misleading information to a registered energy assessor to procure the issue of a Form of Compliance, a Data Disclosure Form or an Energy Audit Form or the making of a certification commits an offence. (*Amended 24 of 2025 s. 12*)
- (3) A person who knowingly or recklessly provides any false or misleading information to the Director to—
 - (a) procure the issue or renewal of a Certificate of Compliance Registration;
 - (b) procure the grant of any exemption under this Ordinance by the Director; or
 - (c) procure the grant of any extension of period under this Ordinance by the Director,commits an offence.
- (4) A person who commits an offence under this section is liable on conviction to a fine at level 6 and to imprisonment for 6 months.

49. Offences relating to registered energy assessors

- (1) A person who knowingly or recklessly provides any false or misleading information to—
 - (a) procure the registration of any person as a registered energy assessor; or

- (b) procure a renewal of registration of any person as a registered energy assessor,
commits an offence.
- (2) A registered energy assessor who knowingly or recklessly issues any Form of Compliance, Data Disclosure Form or Energy Audit Form, or makes any certification, that is false or misleading in any material particular commits an offence.
(Amended 24 of 2025 s. 13)
- (3) A person who not being a registered energy assessor—
 - (a) falsely takes or uses any name, title or description suggesting or implying that the person is a registered energy assessor;
 - (b) uses or knowingly permits the use of in connection with his or her business or profession any description, initials, abbreviations or words intended to cause, or which may reasonably cause, any person to believe that the person is a registered energy assessor; or
 - (c) advertises or represents himself or herself as a registered energy assessor or knowingly permits himself or herself to be so advertised or represented,commits an offence.
- (4) A person who commits an offence under this section is liable on conviction to a fine at level 6 and to imprisonment for 6 months.

50. Defence of due diligence

- (1) In any legal proceedings against a person for an offence under this Ordinance, it is a defence for the person to show that he or she took all reasonable steps and exercised all due diligence to avoid committing the offence.

- (2) If the defence under subsection (1) involves an allegation that the offence was due to—
 - (a) the act or default of another person; or
 - (b) reliance on information given by another person, the person charged is not, without the leave of the court, entitled to rely on the defence unless the person has issued a notice in accordance with subsection (3).
- (3) A notice issued for the purposes of subsection (2) must—
 - (a) identify or assist in the identification of the person who committed the act or default or gave the information; and
 - (b) be issued to the person bringing the legal proceedings at least 7 working days before the hearing of the proceedings.
- (4) If the defence under subsection (1) involves an allegation that the offence was due to reliance on information given by another person, the defence is not established unless the person charged shows that it was reasonable in all the circumstances for him or her to rely on the information, having regard in particular to—
 - (a) the steps which the person took, and those which might reasonably have been taken by the person, for the purpose of verifying the information; and
 - (b) whether the person had any reason not to believe the information.

51. Protection of public officers

- (1) A public officer does not incur any personal civil liability for any act done or omitted to be done by the officer if the officer did or omitted to do the act in the honest belief that the act

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or omission was required or authorized by or under this Ordinance.

- (2) The protection conferred by subsection (1) does not in any way affect the liability of the Government for the act or omission of the public officer.
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Part 11

Transitional Provisions

(Amended 24 of 2025 s. 14)

(Format changes—E.R. 1 of 2017)

52. Energy audit carried out before 21 September 2012

(Amended 24 of 2025 s. 15)

If—

- (a) an energy audit is carried out on or after the date on which a code of practice concerning an energy audit in respect of a building is identified by the Director under section 40(3) but before 21 September 2012;
- (b) the person who carried out the audit possesses the qualifications required for registration as a registered energy assessor; and
- (c) the person is a registered energy assessor on 21 September 2012,

the audit is regarded, as from 21 September 2012, as an energy audit carried out on that date.

(Amended 24 of 2025 s. 15)

53. Energy audit carried out on or after 21 September 2012 but before relevant date

- (1) If an energy audit is carried out—
 - (a) in respect of a building (other than a building of type 1 or 2 specified in Schedule 4) in accordance with a specified code of practice on or after 21 September 2012 but before the relevant date; and

(b) by a registered energy assessor,

the audit is regarded, as from the relevant date, as an energy audit carried out on the relevant date.

(2) In this section—

specified code of practice (指明《守則》) means a code of practice concerning an energy audit in respect of a building that is identified by the Director under section 40(3) on or after 21 September 2012.

(Added 24 of 2025 s. 16)

Schedule 1

[ss. 2, 7, 16 & 43]

(Amended 24 of 2025 s. 17)

Prescribed Buildings

(Amended 24 of 2025 s. 17)

(Format changes—E.R. 1 of 2017)

1. Commercial building.
2. A portion of a composite building that is not for residential or industrial use.
3. Hotel or guesthouse. *(Amended 6 of 2020 s. 55)*
4. Common area of a residential building.
5. Common area of a portion of a composite building that is for residential or industrial use.
6. Common area of an industrial building.
7. Building that is occupied principally for an education purpose.
8. Building that is occupied principally for community services including a community hall, a social services centre and a composite building occupied as both such places. *(Replaced 24 of 2025 s. 17)*

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9. Building that is occupied principally for municipal services including a market, a cooked food centre, a library, a cultural centre, an indoor games hall and a composite building occupied as 2 or more such places. *(Replaced 24 of 2025 s. 17)*
 10. Building that is occupied principally for medical and health care services including a hospital, clinic and rehabilitation centre.
 11. Building that is owned by the Government and used principally for the accommodation of people during the performance of any function of the Government.
 12. Passenger terminal building of an airport.
 13. Railway station.
 14. Building that is occupied principally as a data centre. *(Added 24 of 2025 s. 17)*
 15. A portion of an industrial building that is occupied principally as a data centre. *(Added 24 of 2025 s. 17)*
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Schedule 2

[ss. 4 & 43]

Building Services Installations to which this Ordinance does not Apply

(Format changes—E.R. 1 of 2017)

1. An installation that is solely used for—
 - (a) fire suppression;
 - (b) fire extinguishing; or
 - (c) fire suppression and extinguishing.

2. An installation that is solely used for—
 - (a) surgical operation;
 - (b) clinical treatment;
 - (c) blood processing;
 - (d) providing or maintaining appropriate environment settings for life protection; or
 - (e) any combination of the purposes specified in paragraphs (a), (b), (c) and (d).

3. An installation that is used in a construction site for construction works only.

4. An installation that is solely used for industrial manufacturing.
5. An installation that is solely used for research in an educational institution.
6. A lighting installation that is solely used for—
 - (a) illumination of an exhibit or product on display including special lighting for illuminating merchandise or art work;
 - (b) decoration including special lighting for architectural feature or festival decoration effect;
 - (c) visual production including special lighting for performance, entertainment or television broadcasting; or
 - (d) any combination of the purposes specified in paragraphs (a), (b) and (c).
7. An installation that is solely used for—
 - (a) air traffic regulation;
 - (b) air traffic safety;
 - (c) air traffic control; or
 - (d) any combination of the purposes specified in paragraphs (a), (b) and (c).

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8. An installation that is solely used for—
- (a) railway traffic regulation;
 - (b) railway traffic safety;
 - (c) railway traffic control; or
 - (d) any combination of the purposes specified in paragraphs (a), (b) and (c).
-

Schedule 3

[ss. 2 & 43]

Major Retrofitting Works

(Format changes—E.R. 1 of 2017)

1. Works involving addition or replacement of a building services installation specified in a code of practice that covers one or more places with a floor area or total floor area of not less than 500 m² under the same series of works within 12 months in a unit or a common area of a prescribed building.
2. Addition or replacement of a main component of a central building services installation, including—
 - (a) addition or replacement of a complete electrical circuit at rating of 400A or above;
 - (b) addition or replacement of a unitary air-conditioner or air-conditioning chiller of a cooling or heating rating at or exceeding 350 kW; or
 - (c) addition or replacement of the motor drive and mechanical drive of a lift, an escalator or a passenger conveyor.

Notes

- (1) For the purposes of item 1 of this Schedule—
 - (a) an occupants' clubhouse or a car park is to be regarded as a separate common area within the building; and

- (b) all other common areas are to be regarded together as a separate common area.
 - (2) If works are carried out for more than one place in a unit or a common area of a prescribed building and, having regard to all relevant factors of the case, the works should reasonably be regarded as being under the same series of works, the reference to floor area in item 1 of this Schedule is a reference to the aggregate of the floor area of all those places.
 - (3) In Note (2), *relevant factors* (有關因素) means—
 - (a) whether the works are carried out by a single contractor;
 - (b) whether the works are carried out under a single agreement;
 - (c) whether the works are carried out pursuant to a single works order;
 - (d) the time at which and the period during which the works are carried out;
 - (e) the manner in which the contractor is paid; and
 - (f) whether the works are treated as a single project in the plans and works programme.
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Schedule 4

[ss. 21, 43 & 53 & Schs. 5 & 6]

(Amended 24 of 2025 s. 18)

Buildings that Require Energy Audit

(Format changes—E.R. 1 of 2017)

1. Commercial building.
2. A portion of a composite building that is for commercial use.
3. Building that is occupied principally for an education purpose.
(Added 24 of 2025 s. 18)
4. Building that is occupied principally for community services including a community hall, a social services centre and a composite building occupied as both such places. *(Added 24 of 2025 s. 18)*
5. Building that is occupied principally for municipal services including a market, a cooked food centre, a library, a cultural centre, an indoor games hall and a composite building occupied as 2 or more such places. *(Added 24 of 2025 s. 18)*
6. Building that is occupied principally for medical and health care services including a hospital, clinic and rehabilitation centre. *(Added 24 of 2025 s. 18)*

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7. Building that is owned by the Government and used principally for the accommodation of people during the performance of any function of the Government. *(Added 24 of 2025 s. 18)*
 8. Passenger terminal building of an airport. *(Added 24 of 2025 s. 18)*
 9. Railway station. *(Added 24 of 2025 s. 18)*
 10. Building that is occupied principally as a data centre. *(Added 24 of 2025 s. 18)*
 11. A portion of an industrial building that is occupied principally as a data centre. *(Added 24 of 2025 s. 18)*
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Schedule 5

[ss. 22 & 43]

Interval of Energy Audit to be Carried Out under Section 22(1)

(Schedule 5 replaced 24 of 2025 s. 19)

Part 1

Definitions

1. In this Schedule—

audit date (審核日期), in relation to a building (or a portion of a building) specified in Schedule 4, means the starting date of an energy audit that is carried out in respect of the central building services installations of the building (or the portion of the building) under section 22(1).

Part 2

Type 1 or 2 Building

2. For a building of type 1 or 2 specified in Schedule 4—

Preceding audit date (including first audit date)	Period within which the next energy audit must be carried out
Falls before the relevant date	10 years after the preceding audit date

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Schedule 5—Part 3

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Preceding audit date (including first audit date)	Period within which the next energy audit must be carried out
Falls on or after the relevant date	5 years after the preceding audit date

Part 3

Type 3, 4, 5, 6, 7, 8, 9, 10 or 11 Building

3. For a building of type 3, 4, 5, 6, 7, 8, 9, 10 or 11 specified in Schedule 4—

Preceding audit date (including first audit date)	Period within which the next energy audit must be carried out
Falls on or after the relevant date	5 years after the preceding audit date

Schedule 6

[ss. 22 & 43]

Schedule of First Energy Audit to be Carried Out under Section 22(2)

(Schedule 6 added 24 of 2025 s. 20)

Part 1

Definitions

1. In this Schedule—

Certificate (證明書) means a Certificate of Compliance Registration.

Part 2

Type 1 or 2 Building with Certificate

2. For a building of type 1 or 2 specified in Schedule 4 issued with a Certificate—

Date on which the building is first issued with a Certificate	Period within which the first energy audit must be carried out
Falls before the relevant date	10 years after the date on which the building is first issued with a Certificate

Date on which the building is first issued with a Certificate	Period within which the first energy audit must be carried out
Falls on or after the relevant date	5 years after the date on which the building is first issued with a Certificate

Part 3

Type 3, 4, 5, 6, 7, 8, 9 or 10 Building with Certificate

3. For a building of type 3, 4, 5, 6, 7, 8, 9 or 10 specified in Schedule 4 issued with a Certificate—

Date on which the building is first issued with a Certificate	Period within which the first energy audit must be carried out
Falls before the relevant date	Whichever of the following that expires later— (a) 10 years after the date on which the building is first issued with a Certificate; or (b) 1 year after the relevant date
Falls on or after the relevant date	5 years after the date on which the building is first issued with a Certificate

Part 4

Type 1 or 2 Building with No Certificate

4. For a building of type 1 or 2 specified in Schedule 4 that is not issued with a Certificate—

Date on which occupation approval in respect of the building is issued	Period within which the first energy audit must be carried out
Falls on or after 1 January 1988	12 months after 21 September 2012
Falls after 31 December 1977 but before 1 January 1988	24 months after 21 September 2012
Falls after 31 December 1969 but before 1 January 1978	36 months after 21 September 2012
Falls on or before 31 December 1969	48 months after 21 September 2012

Part 5

Type 3, 4, 5, 6, 7, 8, 9 or 10 Building with No Certificate

5. For a building of type 3, 4, 5, 6, 7, 8, 9 or 10 specified in Schedule 4 that is not issued with a Certificate—

Date on which occupation approval in respect of the building is issued	Period within which the first energy audit must be carried out
Falls on or after 1 January 1988	12 months after the relevant date
Falls after 31 December 1977 but before 1 January 1988	24 months after the relevant date
Falls after 31 December 1969 but before 1 January 1978	36 months after the relevant date
Falls on or before 31 December 1969	48 months after the relevant date

Part 6

Portion of Industrial Building Occupied Principally as Data Centre

6. For a portion of an industrial building that is occupied principally as a data centre—

Date on which the data centre starts operation	Period within which the first energy audit must be carried out
Falls before the relevant date	1 year after the relevant date
Falls on or after the relevant date	5 years after the date on which the data centre starts operation

7. In this Part—

date on which the data centre starts operation (數據中心開始營運日期), in relation to a portion of an industrial building that is occupied principally as a data centre, means the date on which the central building services installations serving that portion of the building start to consume electricity.